

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

August 6, 2026

8:30 a.m./1:30 p.m.

15. JAMIE HALL V. GEOFFREY HALL

25FL1140

Petitioner filed a Request for Order (RFO) on January 28, 2026, seeking child custody and parenting plan orders, child and spousal support orders, as well as exclusive use and control of the family home. Petitioner concurrently filed an Income and Expense Declaration, as well as a Declaration in support of the RFO. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on February 18, 2026 and a review hearing on April 16, 2026. There is no Proof of Service showing Respondent was properly served.

Petitioner filed a request to reschedule on March 9, 2026. That request was granted and the matter was continued to June 4, 2026. Respondent was mail served with the FL-306 and FL-309 on March 9, 2026.

Both parties appeared at CCRC and were able to reach may agreements. A report with the parties' agreements and further recommendations was filed with the court on May 20, 2026. Copies were mailed to the parties on May 21st.

Respondent filed a request to reschedule on June 1, 2026 and again on June 2, 2026. The court granted the June 2nd request and rescheduled the hearing to August 6, 2026. There is no Proof of Service showing the June 2nd FL-309 was served.

Petitioner filed a declaration on July 27, 2026. It was served the same day by mail.

Respondent filed a Responsive Declaration and an Income and Expense Declaration on July 29, 2026. Civil Procedure section 1005(b) states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made July 24th the last day for filing a response to the RFO. Therefore, the declaration is late filed and has not been considered by the court.

Parties are ordered to appear for the hearing to address the issues surrounding service.

TENTATIVE RULING #15: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.